

Opinion of the Court

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Petitioners are similarly incorrect in deprecating the Fifth Circuit’s conclusion that the issue here implicates an element of national security.

One of the ways in which the Executive protects this country is by attempting to control the movement of people and goods across the border, and that is a daunting task. The United States’ border with Mexico extends for 1,900 miles, and every day thousands of persons and a large volume of goods enter this country at ports of entry on the southern border.⁴ The lawful passage of people and goods in both directions across the border is beneficial to both countries.

Unfortunately, there is also a large volume of illegal cross-border traffic. During the last fiscal year, approximately 850,000 persons were apprehended attempting to enter the United States illegally from Mexico,⁵ and large quantities of drugs were smuggled across the border.⁶ In addition, powerful criminal organizations operating on both sides of the border present a serious law enforcement problem for both countries.⁷

⁴See Dept. of Transp., Bureau of Transp. Statistics, Border Crossing/Entry Data, <https://explore.dot.gov/views/BorderCrossingData/Monthly> (detailing the millions of individuals and vehicles that cross the U.S.-Mexico border each month); U. S. Int’l Trade Comm’n, The Year in Trade 2018, p. 190 (USITC Pub. No. 4986, 2019) (explaining that in 2018 the United States imported \$346.5 billion of goods from Mexico).

⁵Dept. of Homeland Security, U. S. Customs and Border Protection, Southwest Border Migration FY 2019, <https://cbp.gov/newsroom/stats/sw-border-migration/fy-2019>.

⁶Dept. of Homeland Security, U. S. Customs and Border Protection, CBP Enforcement Statistics FY2019, <https://cbp.gov/newsroom/stats/cbp-enforcement-statistics-fy2019> (explaining that in FY2019, Border Patrol officers seized 11,682 pounds of cocaine, 266,882 pounds of marijuana, and 14,434 pounds of methamphetamine).

⁷Cong. Research Serv., Mexico: Organized Crime and Drug Trafficking Organizations, Summary (2019) (“Mexican drug trafficking organizations . . . pose the greatest crime threat to the United States”); Dept. of Justice, Drug Enforcement Admin., 2018 National Drug Threat Assessment 97 (DEA-DCT-DIR-032-18) (explaining that “Mexican [transnational crimi-